

24NNCV03868 24NNCV03868

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-08-21

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Case Number: 24NNCV03868 Hearing Date: August 21, 2026 Dept: D

TENTATIVE RULING

Calendar: 3

Date: August 21, 2026

Case No: 24NNCV03868 Trial Date: December 21, 2026

Case Name: Supple v. Fair Oaks Townhouse Association, et al.

DEMURRER

[CCP § 430.41 subds. (e) and (f)]

Moving Party: Defendant, Julie Gaeta

Responding Party: Plaintiff, Diane M. Supple, Trustee of the Diane M. Supple Trust

RELIEF REQUESTED:

Sustain demurrer to the fourth, sixth, and ninth causes of action alleged against defendant Julie Gaeta in the First Amended Complaint.

CAUSES OF ACTION: from First Amended Complaint

1) Breach of Contract [CC&Rs]

2) Breach of Contract [CC&Rs]

3) Breach of Third Party Beneficiary Contract

4) Breach of Fiduciary Duty

5) Negligence

6) Negligence

7) Negligence

8) Negligence

9) Injunctive Relief

SUMMARY OF FACTS:

Plaintiff Diane M. Supple, Trustee of the Diane M. Supple Trust, ("Plaintiff") owns a condominium located at 1715 Fair Oaks Ave., Unit #6, South Pasadena, California, 91030. The First Amended Complaint alleges that within the last three years, Plaintiff's unit has been damaged by several water leaks which emanated from the unit owned by defendant Melva Faye Watts ("Watts") and from the common areas maintained by defendant Fair Oaks Townhouse Association (the "Association").

Plaintiff alleges that the leaks have caused extensive damage and mold, requiring extensive repairs to the unit and to the common areas surrounding the unit. The FAC further alleges that the building and common areas are infested with termites. Plaintiff alleges that the Association is responsible for eradication of termites but has refused and failed to perform the work necessary to effectively eliminate them. Plaintiff alleges that the termites have done extensive damage to Plaintiff's unit and to the common areas.

The Association has filed a Cross-Complaint against Watts for apportionment of fault, indemnification and declaratory relief.

ANALYSIS:

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirza (2007) 147 Cal.App.4th 740, 747; CCP, § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212, superseded by statute as stated in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or

conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A demurrer for uncertainty lies where the pleading is uncertain, ambiguous, or unintelligible. (CCP, § 430.10, subd. (f).)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616 [disapproved on other grounds].) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading, but it rather is directed only at uncertainty existing in the allegations already made. (People v. Taliaferro (1957) 149 Cal.App.2d 822, 825, disapproved on other grounds in Jefferson v. J.E. French Co. (1960) 54 Cal.2d 717, 719-720 [statute of limitations question].)

Where a complaint is sufficient to state a cause of action and to apprise a defendant of issues he is to meet, it is not properly subject to a special demurrer for uncertainty. (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643 [“A special demurrer [for uncertainty] should be overruled where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet”].)

Defendant Julie Gaeta (“Gaeta”) demurs to the three causes of action alleged against her, breach of fiduciary duty, negligence, and injunctive relief. Gaeta argues that the claims are uncertain because the FAC fails to identify what conduct by Gaeta allegedly caused Plaintiff’s injuries. Gaeta further argues that the FAC fails to allege sufficient facts to establish alter ego liability against Gaeta.

Fourth Cause of Action, Breach of Fiduciary Duty

“The elements of a cause of action for breach of fiduciary duty are the existence of a fiduciary relationship, breach of fiduciary duty, and damages.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 820.)

The FAC alleges that on December 5, 2022, Gaeta was the secretary of the Association. (FAC, ¶ 39.) The FAC alleges that the condo owner defendants, including Gaeta, are the alter egos of the Association. (FAC, ¶ 43.)

Plaintiff alleges that “there was a tacit understanding amongst the homeowners that monies would not be spent unless absolutely necessary. [...] When Plaintiff presented her aforementioned issues to the Board at a homeowner’s meeting, formal discussions were held by the Board in “executive session,” which excluded Plaintiff and which resulted in the Association assuming no responsibility and taking no action regarding Plaintiff’s ongoing damage” (FAC, ¶ 85.) Plaintiff further alleges that “[b]ecause the members of the Association have not acted to remediate the common area termite problem and the common area plumbing problem, and instead have refused to address Plaintiff’s damages, each member has breached his or her fiduciary duty as a member of the Association towards Plaintiff.” (FAC, ¶ 86.)

Gaeta argues that it “is the HOA itself that holds the fiduciary relation with Plaintiff,” rather than the individual condominium owners, including Gaeta. (Demurrer, p. 10:12-13.) This argument is unavailing. The directors of a nonprofit mutual benefit corporation, like the Association here, are fiduciaries who must act for the benefit of the corporation and its members. (Frances T. v. Village Green Owners Assn. (1986) 42 Cal.3d 490, 513 [“Directors of a nonprofit corporations ... are fiduciaries who are required to exercise their powers in accordance with the duties imposed by the Corporations Code”]; Cohen v. S&S Construction Co. (1983) 151 Cal.App.3d 941, 945 [“This fiduciary duty extends to individual homeowners, not just the homeowners association”].)

Here, the FAC alleges that Gaeta was the secretary of the Association. (FAC, ¶ 39.) Accordingly, Gaeta owes Plaintiff a fiduciary duty as a director of the Association. The FAC alleges that the Association breached its duty by failing to remediate the common area termite and plumbing problems and refusing to address Plaintiff’s damages. (FAC, ¶ 86.) Lastly, the FAC alleges that Plaintiff suffered damages as a result of the directors’ breaches of their fiduciary duties. (FAC, ¶ 89.) Accordingly, Plaintiff has sufficiently alleged each element of a claim for breach of fiduciary duty against Gaeta.

The demurrer to the fourth cause of action is OVERRULED.

Sixth Cause of Action, Negligence

In order to state a claim for negligence, Plaintiff must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

Plaintiff alleges that the condo owner defendants "had a duty to all condominium owners to oversee the Board of Governors and to ensure that the needs of all of the condominium owners now, and in the future, would be met." (FAC, ¶ 101.) Plaintiff alleges that the condo owner defendants breached that duty by "allowing the Board of Governors to act without sufficient oversight and by refusing, either directly or indirectly, to maintain sufficient financial reserves to respond to any reasonable financial emergency" and by "influencing the Board of Governors to spend as little money as possible on the premises and to keep the Association dues as low as possible." (FAC, ¶¶ 102-103.)

Gaeta demurs to the negligence cause of action on the grounds that the FAC "lacks sufficient allegations as to any specific conduct/negligent act on the part of [Gaeta]." (Demurrer, p. 11:1-2.)

"It is well settled that corporate directors cannot be held vicariously liable for the corporation's torts in which they do not participate. Their liability, if any, stems from their own tortious conduct, not from their status as directors or officers of the enterprise. [citations] '[A]n officer or director will not be liable for torts in which he does not personally participate, of which he has no knowledge, or to which he has not consented.... While the corporation itself may be liable for such acts, the individual officer or director will be immune unless he authorizes, directs, or in some meaningful sense actively participates in the wrongful conduct.'" (Frances T., supra, 42 Cal.3d at pp. 503-504, internal citations omitted.)

"To maintain a tort claim against a director in his or her personal capacity, a plaintiff must first show that the director specifically authorized, directed or participated in the allegedly tortious conduct [citations] or that although they specifically knew or reasonably should have known that some hazardous condition or activity under their control could injure plaintiff, they negligently failed to take or order appropriate action to avoid the harm." (Id., at p. 508.)

Under the facts alleged as alleged by Plaintiff, the condo owner defendants knew of the water leak and termite infestation and refused and failed to remediate the issues. (FAC, ¶¶ 45-47.) Plaintiff alleges that the condo owner defendants conspired with the "Board not to remediate, repair and reimburse Plaintiff for common area damage which spread into her private area." (FAC, ¶ 87.) Plaintiff has thus alleged that the condo owner defendants, including Gaeta, breached a duty of care owed to her by failing to take action to repair the plumbing and termite problems.

"Directors and officers have frequently been held liable for negligent nonfeasance where they knew that a condition or instrumentality under their control posed an unreasonable risk of injury to the plaintiff, but then failed to take action to prevent it." (Frances T., supra, 42 Cal.3d at p. 510, collecting cases.) However, since only "a director who actually votes for the commission of a tort is personally liable, even though the wrongful act is performed in the name of the corporation," (Id. at p. 511) Plaintiff will have to prove that Gaeta acted negligently as an individual. (Ritter & Ritter, Inc. Pension & Profit Plan v. The Churchill Condominium Assn. (2008) 166 Cal.App.103, 121 ["California has adopted the rule that while a condominium association may be liable for its negligence, a greater degree of fault is necessary to hold unpaid individual condominium board members liable for their actions on behalf of condominium associations."].)

For pleading purposes, Plaintiff has alleged sufficient facts to state a cause of action for negligence against Gaeta.

The demurrer to the sixth cause of action is OVERRULED.

Ninth Cause of Action, Injunctive Relief

"The elements of a cause of action for injunctive relief are (1) a tort or other wrongful act constituting a cause of action; and (2) irreparable injury, i.e., a factual showing that the wrongful act constitutes an actual or threatened injury to property or personal rights which cannot be compensated by an ordinary damage award." (Brownfield v. Daniel Freeman Marina Hospital (1989) 208 Cal.App.3d 405, 410, citation omitted.) Notably, "injunctive relief is a remedy and not, in itself, a cause of action, and a cause of action must exist before injunctive relief can be granted." (Camp v. Board of Supervisors (1981) 123 Cal.App.3d 334, 356.)

Gaeta demurs to the ninth cause of action for injunctive relief on the ground that injunctive relief is a remedy, not an independent cause of action. Plaintiff concedes that injunctive relief is not a standalone cause of action and that the demurrer is proper as to this claim. (Opp., p. 2:18.)

The demurrer to the ninth cause of action is SUSTAINED, without leave to amend.

RULING:

Defendant Julie Gaeta's Demurrer is OVERRULED as to the fourth and sixth causes of action and SUSTAINED, without leave to amend, as to the ninth cause of action.

Gaeta is to file an answer within 10 days of this ruling.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.